THE STATE
versus
PROUD RUBAYA

HIGH COURT OF ZIMBABWE
ZISENGWE J, DEMBURE J
MASVINGO, 16 September 2025

Criminal review

ZISENGWE J: The essence of the crime of fraud is the deceiving or misleading of the victim of the crime. This is done by way of a misrepresentation, that is an incorrect statement of fact or law made by one person to another. Therefore the making of a misrepresentation with the intention to deceive are two of the essential ingredients on a charge of fraud, i.e., contravening s136 of the Criminal law (Codification and Reform Act) *[Chapter 9:23]*, ("the criminal law code"). For a conviction of fraud to be sustained, it must be proved (or admitted by the accused) that he or she unlawfully made a mispresententation to another-

a) Intending to deceive another person or realising that there was a real risk or possibility of deceiving another person and;
b) Intending to cause another person to act upon the misrepresentation to his a her prejudice, or realising that there was a real risk or possibility that another person may act upon the misrepresentation to his or her prejudice

The accused in this case was charged with fraud and the charge reads:

> In that on the 16th day of January 2025 and Masvingo Central business District, **Masvingo Proud Rubaya** made a misrepresentation to **Kudzai Takawira** that he was selling a house which is stand number 15881 Simon Mawarire Street Runyararo West, Masvingo in actual fact the house does not belong to him it belongs to his late mother, intending to deceive **Kudzai Takawira** or realising that there was a real risk or possibility of deceiving **Kudzai Takawira** to act upon the misrepresentation to his own prejudice or realising that there

was a real risk or possibility that **Kudzai Takawira** might act upon the misrepresentation to his own prejudice..”

The state outline on the other hand reads:

1. On the 16th of January 2025, the accused person made a misrepresentation to the complainant that he was selling a house which is stand number 15881 Simon Mawarire Street Runyararo West belonging to him. In actual fact the house does not belong to him it belongs to his late mother Emelly Rubaya who passed on sometime in 2023.

2. Accused sold the house to the complainant paid a deposit of $10 000 to the accused. Later on the complainant consulted her lawyer and was told that paper work was not properly done. Complainant then demanded her money back and she was only given US$6 500.00 after 2 weeks.

3. Police detectives made investigations which revealed that the accused person registered deceased estate to the Master of the High Court on the 16th day of January 2025 under DRMS 18/25. The accused then went on to sell the house on the same date after registering the estate.

4. A police report was made and investigations were instituted which led to the arrest of the accused person”

It was the canvassing of the essential elements under S 271 (2) (b) of the Criminal Procedure & Evidence Act, [*Chapter 9:07*] which I found problematic, particularly on the question of making a misrepresentation and the intention to deceive. After the accused confirmed the contents of the State outline, the exchange between the court and the accused then proceeded as follows:

Q. On 16 January 2025 you sold Stand No. 15881 Simon Manunure Street to the complainant for US $ 15 600?

A. Yes

Q. This house was not yours but it belonged to your late mother ?

A. Yes

Q. Did you have permission from the Master of the Hgh Court to sell the house

A. No permission

Q. You knew [that] that you were doing was unlawful

A. Not aware

Q. Your plea of guilt is an admission of [the] facts as read to you and elements explained to you

A. Yes

Q. Any defence/excuse to offer

A. No defence to offer

Thereafter the accused was convicted. He was then sentenced to 18 months' imprisonments, 6 of which were conditionally suspended for 5 years condition of restitution.

Conspicuious by their absence were questions relating to "making a representation" and the "intention to deceive". It was on that basis that I directed a query to the learned magistrate in the following terms:

> "Were the elements of "making a misrepresentation" and "intention to deceive" canvassed in the questioning of the accused in terms of s271(2) (b) of the CPEA?
>
> 2. When the accused was asked if he was aware of the unlawfulness of his conduct, he answered " not aware" Was the plea of guilty unequivocal in the circumstances?"

The magistrate responded to the query as follows:

> "On the element of mirepresentaion. The court asked the accused that he sold a house that was not his but it belonged to his late mother and he agreed.
> On the issue of intention to deceive the court did not ask if his intention was to deceive.
> Accused answered he was not aware that it was unlawful. It was my view that his ignorance was not a defence. Since he had registered the Estate he should have enquired or at least told the Master that he wanted to sale the house and he would have been properly advised on what to do."

The magistrate obviously misunderstood the nature of the query. As stated in the opening statements of this short judgement, to sustain a conviction on a charge to fraud, the twin questions of making a misrepresentation with the intention to deceive are indispensable. They are either proved by the evidence or unequivocally admitted by the accused in a guilty plea.

It was compleletly remiss at the part of the court, therefore to fail to put questions to the accused in that regard.

The query did not in the least suggest that the accused did not, commit the offence of fraud, much less break any law, what was sought to be conveyed by the query was the failure to pose to the accused questions regarding the making of a representation and the attendant intent deceive/mislead he complaintant to act upon the misrepresentation to his prejudice.

A misrepresentation is a pervesion or distortation of the truth. An accused makes a misrepresentation when he represents to the another that a fact (or set of fatcs) exists which in reality do not exist. See *S* v *Nyuke* 1981 ZLR 158 (G), *S* v *Sithole* 1997 (1) 225 (H).

In the context of the present matter, although the charge and State outline both allude to the accused having misrepresented to the complainant that the house belonged to him, the questioning under section 271 (2) (b) of the CPEA failed to canvass this essential element, nor did it canvass the intention to deceive. It wandered off tangential to those questions and asked if the accused had authority by the Master to sell the property.

Merely selling a house which does not belong to one as the accused proceeded to do does not *ipso facto* connote making a misrepresentation. As part of the questioning under a guilty plea the accused should have been asked if, as a matter of fact, he misrepresented to the complainant that the house belonged to him.

Similarly, questions relevant to the intention to deceive should have been posed to the accused. The intention to deceive means an intention to make someone believe that something which is in fact false. This is critical to sustain a charge of fraud.

On the question of knowledge on the part of the accused of the unlawfulness of his conduct, the magistrate reasoned that ignorance of the law is not a defence, therefore whether the accused was unaware of the unlawfulness of his conduct was without moment. Firstly, this begs the question why the court asked this question in the first place. Secondly, and perhaps more importantly, the intention to deceive presupposes knowledge of the unlawfulness of one's conduct. It relates to the accused's state of mind when he made the misrepresentation.

To conclude, therefore, part of the questioning of the accused by the court should have proceeded along the following lines:

Q. Do you admit that you misrepresented to the complainant that the house you were selling to him belonged to you?

A. [if this question was answered in the affirmative, the follow up question would have been]

Q. Do you also admit that by means of this misrepresentation you intended to deceive the complianat into believing that the house was yours and to act on this misrepresentation to his prejudice?

Ultimately, for want of canvassing the essential elements referred to above, I am unable to confirm the proceedings as being in accordance with real and substantial justice. The conviction is therefore quashed and the sentence set aside. The matter is hereby remitted the court a quo for a trial *denovo* before a different magistrate. In the event of a conviction ensuing , the sentence to be imposed shall not be more severe than one originally imposed.

DEMBURE J agreed.